Methodology Proposal: Feasibility Study for a Gender Pay Gap Calculator in the European Audiovisual Sector

Submitted in response to EURO-MEI Call for Applications, Project 101250721 -- FAIR INCLUSIVE AV

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Independent expert in social impact data systems and EU-funded programme evaluation.

This proposal is accompanied by a working prototype built on a 693-contract simulated AV sector dataset, including Oaxaca-Blinder decomposition and MNAR bias analysis.

1. Context and Problem Framing

The EU Pay Transparency Directive 2023/970 introduces mandatory gender pay gap reporting obligations that will transform employer accountability across the European economy. However, its core architecture (employer-level reporting, annual reference period, coverage threshold of 100 or more employees) is structurally incompatible with the European audiovisual sector. The AV sector operates through project-based, multi-employer contracts in which a single professional may work for four to eight distinct production companies in a single year, under varying roles and contract types. The majority of AV workers are legally self-employed or on short-term fixed-term engagements, placing them outside the SES-derived reference framework that underpins the Directive's reporting logic.

Pay transparency in the AV sector is not primarily a compliance challenge. It is a collective bargaining capacity challenge. Without structured, comparable pay data disaggregated by role, production type, and contract form, trade unions cannot negotiate evidence-based rate cards, freelance professionals cannot assess whether their fees reflect market norms or gender-based discrimination, and policy makers cannot enforce the spirit of the Directive in a sector defined by fragmented employment relations and structural opacity. The FAIR INCLUSIVE AV project is an opportunity to design a sector-specific transparency instrument that addresses this gap directly.

Existing pay equity tools cannot be directly adapted to these conditions. Logib (the Swiss federal methodology endorsed by several EU member states) is designed for employer-level analysis of permanently employed staff and assumes a single employer managing a stable workforce. The UK GPG reporting service and the Austrian Equal Pay Tool share the same architectural assumption: a single employer, a fixed workforce, and an annual reference period. None of these tools can aggregate contracts across multiple employers, handle worker-year FTE conversions from short-term engagements, or accommodate project-based contract structures. The FAIR INCLUSIVE AV calculator is therefore purpose-built for sector-specific conditions, not an extension of any existing tool.

Note: Streaming platforms (Netflix, Amazon, Apple TV+) are significant AV commissioners in FR and IE and are subject to national collective agreements in those countries; while not the primary focus of Phase 1 fieldwork, their commissioning relationships with production companies fall within scope of the data mapping exercise.

2. Research Questions

RQ1	What remuneration data currently exists in the European audiovisual sector, who controls it, and under what conditions can it be collected and shared for the purpose of a gender pay gap analysis?
RQ2	Can a comparable unit of analysis be defined across productions, countries, and contract types that yields a statistically meaningful and policy-relevant gender pay gap estimate consistent with the pay definition of Directive Art. 3.c?
RQ3	Can a calculator be made operationally useful for trade unions and professional associations as a collective bargaining instrument, or are alternative transparency strategies (pay reporting frameworks, union survey toolkits, policy recommendations) required?

3. The Calculator as Union Infrastructure

A calculator designed solely to assist employers in meeting Directive Art. 9 reporting obligations would have limited strategic value for EURO-MEI. The policy objective of this project is a calculator that builds collective bargaining capacity: one that provides role-level, production-type, and contract-type disaggregated pay gap indicators that trade unions and professional associations can deploy as evidence in negotiations, advocacy campaigns, and European Commission policy dialogue. Primary beneficiaries are trade unions and professional associations (FIA, FIM, Ver.di, IADT, EWA, Collectif 50/50), who will use disaggregated pay gap indicators as evidence in rate card negotiations, collective agreement advocacy, and European Commission policy dialogue on Directive Art. 24 transposition. Public funding bodies and employers committed to best

practice also benefit as pay transparency becomes a compliance and reputational signal across the sector.

4. Methodology: Four Phases

Phase	Key activities	Timeline	Outputs
Phase 1 Desk research	Systematic mapping of Eurostat SES coverage gaps; CNC France pay data review; EAO Yearbook analysis; collective agreement inventory for ES, FR, DE, IE.	Months 1-3	Annotated inventory of existing data sources, access conditions, and coverage gaps by country.
Phase 2 Stakeholder consultations	Expert group meeting Brussels April 2026; structured interviews with FIA, FIM, Ver.di, IADT; bilateral meetings with national film funds; Berlin steering group February 2027.	Months 3-10	Stakeholder needs assessment; data access agreements in principle; validated role taxonomy draft.
Phase 3 Data mapping and governance	Structured inventory of data held by project partners and associated film funds; GDPR compliance review with EURO-MEI DPO; data governance framework including k-anonymity protocol.	Months 6-12	Data availability matrix; GDPR-compliant governance protocol; go / no-go decision for Scenario A or B.
Phase 4 Iterative prototype	Calculator development (Scenario A) or alternative strategy document (Scenario B); testing with steering group; user testing with union partners; final presentation Berlin February 2028.	Months 12-24	Calculator plus implementation guide (Scenario A) OR pay reporting framework, union toolkit, policy recommendation document (Scenario B).

5. Feasibility Scenarios

Both scenarios produce deliverables of direct policy value; Scenario B advances the collective bargaining capacity objective through alternative outputs of equivalent strategic weight.

Scenario A: Calculator Viable

Conditions required:

- Common worker identifier available (union membership number, national social security number, or AV guild registration ID).
- Pay data accessible for publicly funded productions (via Art. 24 transposition or film fund data sharing agreement).
- Harmonised role taxonomy agreed across ES, FR, DE, and IE.
- Minimum 50 contracts per role x gender x country (consistent with Logib minimum cell-size recommendations and required for 80% power to detect a 10-percentage-point gap at $p < 0.05$).

Deliverables:

- Sector-specific GPG calculator aggregating contracts to worker-year FTE (Eurostat SES 220-day reference).
- Implementation guide for unions, film funds, and professional associations.

Scenario B: Calculator Not Viable

Conditions triggering this scenario:

- Data fragmentation too severe for cross-employer linkage.
- GDPR constraints prevent cross-border identifier matching.
- Role taxonomy cannot be harmonised within project timeline.

Alternative deliverables:

- (1) Standardised pay reporting template for publicly funded productions (Art. 24 transposition tool).
- (2) Union survey toolkit: validated instrument and analysis template for EURO-MEI member surveys.
- (3) Policy recommendation to adapt Art. 9.1 threshold for the AV sector, submitted to EC Art. 31 review (2028).

6. Risk Register

Risk	Likelihood	Mitigation strategy
Data fragmentation: key pay data held by multiple disconnected parties (film funds, social security, production companies) with no shared identifier.	High	Begin with four partner countries (ES, FR, DE, IE) where direct interlocutors exist; treat CNC France as lead data partner; Scenario B provides viable exit if full linkage is not achievable.
Sector resistance to reporting: production companies and individual professionals may refuse to disclose pay data.	Medium	Design minimum-input tool requiring only role, daily rate, and contract type; frame participation as competitive advantage for talent access; pilot with film funds before sector-wide rollout.

Risk	Likelihood	Mitigation strategy
GDPR constraints on data linkage: cross-border transfer of worker-level pay data requires legal basis that may not be available across all partner countries.	Medium-High	Work with aggregated production-level data where possible; consult EURO-MEI DPO before tool architecture decisions; apply k-anonymity k >= 5 at role x production_type x country level before any data publication or sharing.
Cross-country comparability: different contract type taxonomies and collective agreement structures may prevent cross-national gap estimates.	Medium	Adopt Directive Art. 3.a 'pay' definition as project standard; develop a minimum 8-role harmonised taxonomy as Phase 2 output before data collection begins.

7. Technical Proof of Concept

As a proof of concept accompanying this application, the applicant has developed a prototype gender pay gap calculator using a simulated European audiovisual sector dataset (693 contracts, 230 workers, 65 productions, 22 variables, random seed 42). The prototype implements Eurostat-aligned metrics (unadjusted and adjusted gender pay gap, pay quartile distribution per Directive Art. 9.1.f, gap by category of workers per Art. 9.1.g) together with OLS regression for the adjusted gap (controlling for role, seniority, experience, production type, contract type, and country) and a simplified Oaxaca-Blinder decomposition consistent with the Logib methodology. Key finding from the prototype: 14.1% of the total pay gap is unexplained by structural characteristics (the Art. 10 joint pay assessment proxy) while the remaining gap is attributable to occupational segregation and seniority differentials. The prototype also demonstrates that MNAR (Missing Not At Random) bias in pay reporting for women in low-paid roles leads to underestimation of the true gap, a methodological consideration that must be addressed in any real-data implementation. The full dataset, Python analysis notebook (gpg_analysis.ipynb), and data codebook are available on request.

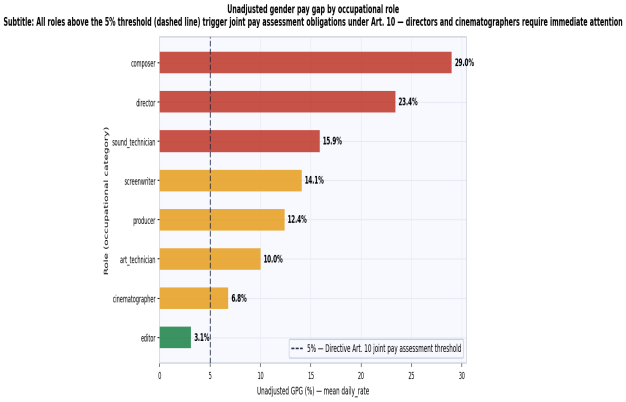

Figure: Unadjusted GPG by role (prototype dataset, n=693).

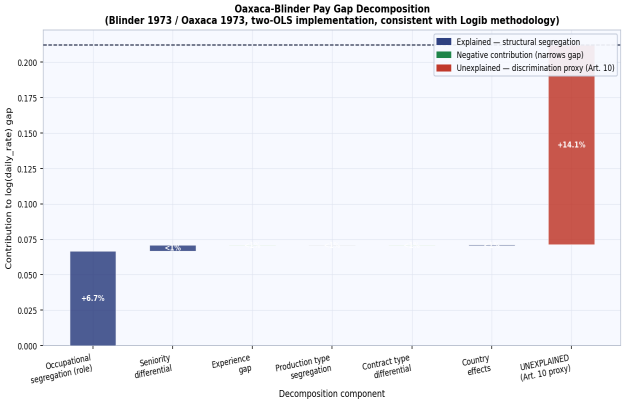

Figure: Oaxaca-Blinder decomposition -- explained vs. unexplained pay gap components.

This methodology proposal is submitted as part of the FAIR INCLUSIVE AV application process. All prototype data are synthetic. No confidential or personal data have been used in the development of the proof-of-concept materials accompanying this application.